

24STLC09164 24STLC09164

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-02

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Case Number: 24STLC09164 Hearing Date: September 2, 2026 Dept: 25

HEARING DATE: Wed., September 2, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: State

Farm Mutual Automobile Insurance Company v. Arreguin, et al.

COMP. FILED: 12-16-24

CASE NUMBER: 24STLC09164

NOTICE: OK

PROCEEDINGS: MOTION

TO VACATE DISMISSAL AND REINSTATE CASE

MOVING PARTY: Plaintiff State Farm Mutual Automobile
Insurance Company

RESP. PARTY: None

MOTION TO VACATE

DISMISSAL

(Code Civ. Proc., § 473(b))

TENTATIVE RULING:

The Court

GRANTS State Farm Mutual Automobile Insurance Company's motion to vacate the

court-ordered dismissal for failure to appear at trial on June 15, 2026.

The June 15,
2026 dismissal is hereby SET ASIDE AND VACATED.

The Court
ORDERS State Farm to SHOW CAUSE, on Wednesday, October 28, 2026 at 9:30 a.m. in
Department 25 of the Spring Street Courthouse, why a default judgment has not
been entered.

SERVICE:

[X]
Proof of Service Timely Filed (CRC, rule 3.1300) OK

[X]
Correct Address (CCP §§ 1013, 1013a) OK

[X]
16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of August 28, 2026 [] Late [X]
None

REPLY: None
filed as of August 28, 2026 [] Late [X]
None

ANALYSIS:

State Farm Mutual Automobile Insurance Company filed
this subrogation action against Luis Arreguin and Enrique Arreguin. The Arreguins defaulted in February
2026. State Farm failed to file a timely
default judgment package as to the Arreguins, and failed to appear for the June
15, 2026 non-jury trial. The Court
ordered State Farm's complaint dismissed without prejudice for failure to
prosecute. State Farm now moves to have
the dismissal vacated pursuant to Code of Civil Procedure section 473,
subdivision (b)'s mandatory attorney-fault provision.

A

motion pursuant to the mandatory relief provision of Code of Civil Procedure section 473, subdivision (b), must be (1) timely, (2) in proper form, and (3) accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect. (Code Civ. Proc., § 473, subd. (b).) A court must grant relief if the party satisfies those requirements, unless the court finds that the default or dismissal was not actually caused by the attorney's fault. (Ibid.)

State Farm's motion, filed August 10, 2026, satisfies each of those requirements. Its counsel declares that the failure to appear was the result of counsel's "inadvertent clerical error." She further attests that she "failed to see the Third Amended Standing Order assigning a June 15, 2026 trial date" because it "was saved into the case file as one document labeled 'Conformed Summons and Complaint' . . . [and she] did not see any notices of hearings in the case file and did not have any hearings calendared."

State Farm's motion is not accompanied by papers curing the lapse that led to the dismissal, but State Farm represents to the Court that it "is still working on obtaining written declarations necessary to submit in support of its Default Judgment packet" and its counsel "has been diligently working to finalize the Default Judgment packet." The Court accepts that representation. (Austin v. Los Angeles Unified School Dist. (2016) 244 Cal.App.4th 918, 933.)

The Court

GRANTS State Farm's motion. The June 15, 2026 dismissal is hereby SET ASIDE AND VACATED.

The Court ORDERS State Farm to SHOW CAUSE, on Wednesday, October 28, 2026 at 9:30 a.m. in Department 25 of the Spring Street Courthouse, why a default judgment has not been entered.